

Nand Kishor v. State of U.P. and another

High Court of Judicature at Allahabad · Division Bench · 16 May 2022 · WRIT - C No. - 28629 of 2021 · **Writ disposed; liberty to file para 6.8 objection; coercive action stayed.**

HEADNOTE

In a writ seeking to quash recovery pursuant to a notice dated 19.08.2021 for Rs.53,632, the Allahabad High Court, without expressing any opinion on merits, disposed of the petition by granting the consumer liberty to submit an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, directing respondent no.2 to decide it in accordance with law within a further six weeks after reasonable opportunity of hearing, and staying coercive action for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Nand Kishor filed a writ petition in the Allahabad High Court to quash recovery proceedings pursuant to a notice dated 19 August 2021 for realising Rs.53,632. None appeared for him even on the revised call. Standing counsel and counsel for respondent no.2, the distribution licensee, were present. Counsel for respondent no.2 stated on instruction that the petitioner could submit an objection before that respondent under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, to be decided within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to recovery notice — alternate remedy with stay

HOLDING

Where a consumer challenges a recovery notice by writ, and the licensee states that an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 may be filed and will be decided in a time-bound manner, the High Court may, without expressing any opinion on merits, dispose of the writ by granting liberty to file that objection within a stipulated period, directing disposal after reasonable opportunity of hearing, and staying coercive action for a limited period pending that disposal. ¶ 1

PRINCIPLE TAGS

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Writ disposed with liberty to file a paragraph 6.8 objection within four weeks; if filed, to be decided after hearing within six weeks; coercive action stayed for eight weeks or till disposal, whichever is earlier. ¶ 1

alternative-remedy-statutory-appeal-6.8 Court relegated the consumer to the paragraph 6.8 objection before respondent no.2 rather than examining the recovery notice on merits. ¶ 1

assessment-6.8-alternate-remedy Demand of Rs.53,632 under the 19.08.2021 notice left to the statutory 6.8 objection route, to be decided in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE NOTICE DATED 19.08.2021 AND THE DEMAND OF RS.53,632

Court expressly declined to express any opinion on the merits. ¶ 1

